

enrichment, and breach of fiduciary duty – and that each Defendant named in this cause of action is liable as a co-conspirator to those torts.” Complaint ¶ 104. The Complaint further alleges, “[t]wo or more Defendants,” including Defendant Rodney Andrews, “formed and operated a coordinated agreement[] to commit the wrongful acts alleged herein.” Complaint ¶ 107. Plaintiff also alleges Defendants’ “cooperation and unity of action show a ‘meeting of the minds,’ ” and that Defendant Rodney Andrews induced the investment and loan. Complaint ¶ 111.

Here, the cause of action for civil conspiracy alleges tortious conduct including fraud, intentional misrepresentation, conversion, unjust enrichment, and breach of fiduciary duty, but fails to allege sufficient facts as to what act or acts were performed by Defendant Rodney Andrews that furthered the common design or conspiracy in connection with these claims. The demurrer is well taken.

For the reasons noted previously, the Court will permit leave to amend.

2. CU0002221 Bill Sinor, Jr. vs. B & W Resorts, Inc., et al.

On the Court’s motion, the hearing on Defendants’ motion to compel responses to Special Interrogatories, Set One and for sanctions is continued to Friday, June 5, 2026, at 10:00 a.m., in Department 6, and the parties are directed to meet and confer as specified herein.

Legal Standard

Under Code of Civil Procedure section 2030.300(a), a court may order a party to serve a further response to an interrogatory when the court finds: “(1) An answer to a particular interrogatory is evasive or incomplete[;] (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate[; or] (3) An objection to an interrogatory is without merit or too general.”

Upon receipt of a response, the propounding party may move to compel further response if it deems an answer to a particular interrogatory is evasive or incomplete, an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate, or an objection to an interrogatory is without merit or too general. Code Civ. Proc. § 2030.300(a). Any motion to compel further answers to interrogatories must be filed within forty-five (45) days of receipt of response, unless the parties agree to extend the time in writing. Code Civ. Proc. § 2030.300 (c). When such a motion is filed, the Court must determine whether responses are sufficient under the Code, and the burden is on the responding party to justify any objections made and/or its failure to fully answer the interrogatories. *Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220-21; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.

Timeliness

Plaintiff argues Defendants’ motion is untimely. Not so.

Pursuant to Code of Civil Procedure section 2030.300(c), notice of a motion to compel further responses to interrogatories must be given within 45 days of service of the verified response.

Under Code of Civil Procedure section 1010.6, two court days are added to response deadlines when legal documents are served electronically. Code Civ. Proc. § 1010.6(a)(3)(B).

Plaintiff served responses on December 19, 2025 (and reportedly sent a signature authentication on December 31 as a courtesy). Even if the Court utilizes the former date, the deadline for filing a motion to compel would be February 4, 2026 (45 days after December 19, 2025, plus 2 court days for electronic service). Defendants served and filed their motion on February 3, 2026. The motion is timely.

Meet and Confer

“A meet and confer declaration in support of a motion shall state facts showing *a reasonable and good faith attempt, either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion.” Code Civ. Proc. § 2016.040(a) (italics added).

At bar, Defendants sent Plaintiff a meet and confer letter on January 6, 2026 regarding the alleged inadequate responses. See Schramm Decl., Ex. E. The letter only requests amended responses, and makes no mention of attempting to set up further communication with Plaintiff’s counsel. See *id.* There is no evidence that Plaintiff responded to Defendants’ meet and confer letter. Moreover, there is no evidence that the parties actually discussed the same in person or remotely. In short, there was not a sufficient and reasonable attempt by both sides to informally resolve their dispute as required.

Failing to confer or to attempt to confer “in a reasonable and good faith attempt to resolve informally any dispute concerning discovery” is a “misuse” of the discovery process and is subject to a mandatory monetary sanction. Code Civ. Proc. §§ 2023.010(i) and 2023.020. Failing to participate in the meet and confer process is also sanctionable in the amount of \$1,000.00 (after notice and an opportunity to be heard) pursuant to Code Civ. Proc. section 2023.050(a)(3).

Accordingly, the hearing on Defendants’ Motion to Compel is continued to Friday, June 5, 2026, at 10:00 a.m., in Department 6. Within seven (7) days of this order, counsel for the parties are ordered to participate in meaningful meet and confer with respect to the issues giving rise to the pending motion. Thereafter, the parties shall file a Joint Status Report, no later than two weeks prior to the scheduled hearing, limited to five (5) pages, apprising the Court of the outcome of the meet and confer efforts and setting forth in succinct fashion each party’s position as to what discovery issues remain outstanding in relation to the pending motions. The Report shall also include any request for discovery sanctions by any party. To the extent that any discovery disputes remain, the parties shall file an amended separate statement at least two weeks prior to the continued hearing date. Lastly, the Court is aware that a motion to consolidate is set for hearing in Department A on May 8, 2026 related to this matter and Case No. CU0002183. The Report shall apprise the Court of the outcome of the consolidation request.